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CITY OF CAGAYAN DE ORO | WORKING DRAFT

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By: JUSTIN KYLE P. ASNE
Local Legislative Staff Officer

Republic of the Philippines
CITY OF CAGAYAN DE ORO
SANGGUNANG PANLUNGSOD

PLEASE HIGHLIGHT YOUR RESPONSES AND IDENTIFY WHO YOU ARE SO WE CAN KEEP TRACK

PROPOSED ORDINANCE NO. _____
Series of 2026

AN ORDINANCE ESTABLISHING THE CAGAYAN DE ORO CITY EMERGENCY RICE BUFFER STOCK PROGRAM FOR LOCAL CONSUMPTION, INSTITUTIONALIZING AN EXPRESSLANE FOR RICE SHIPMENTS AT THE PORT OF CAGAYAN DE ORO DURING CRISES, CALAMITIES, EMERGENCIES, AND SIMILAR OCCASIONS, AND CREATING THE CITY FOOD SECURITY TASK FORCE

Principal Sponsor: HON. GEORGE CHRISTOPHER Q. GOKING
Chairperson, Committee on Trade and Commerce

STATUS: Working baseline for Technical Working Group deliberation. Quantities, holding periods, procurement mechanics, deputation, inspection protocols and private-sector reserve obligations remain subject to validation by the competent national agencies and the City Legal Office.

WHEREAS, Section 16 of Republic Act No. 7160, otherwise known as the Local Government Code of 1991, authorizes local government units to exercise powers necessary, appropriate or incidental to efficient and effective governance and those essential to the promotion of the general welfare;

WHEREAS, the City is empowered to adopt measures protecting its inhabitants from the harmful effects of disasters and calamities and to provide relief services and assistance, and may regulate businesses within its territorial jurisdiction subject to the Constitution and national law;

WHEREAS, Republic Act No. 10121 requires local governments to strengthen disaster preparedness, response and recovery systems, including continuity of essential supplies;

WHEREAS, Republic Act No. 7581, as amended, declares rice a basic necessity and protects consumers against hoarding, profiteering, cartels and other illegal price manipulation, while reserving price-control and enforcement powers to the authorities designated by national law;

WHEREAS, Republic Act No. 12078 requires the National Food Authority to maintain an optimal fifteen-day national rice buffer stock and authorizes the Department of Agriculture, under the conditions fixed by law, to address a food security emergency on rice and dispose of NFA stocks through government entities, local government units and other lawful channels;

WHEREAS, Republic Act No. 12022 strengthens national enforcement against agricultural smuggling, hoarding, profiteering and cartels, and provides mechanisms for warehouse registration, inspection and inter-agency enforcement that the City shall support without usurping powers reserved to national agencies;

WHEREAS, the City Government, the Philippine Ports Authority Region X and the authorized cargo-handling operator prepared a Memorandum of Agreement for an Express-Lane and Priority-Berthing Coordination Mechanism for vessels carrying rice and other essential commodities during emergencies and disasters, which operational principles should be institutionalized subject to PPA authority and approval;

WHEREAS, the City seeks to enforce a mandatory buffer stock of rice to be stored in the warehouses of Cagayan de Oro registered rice importers intended to local Cagayan de Oro consumption. Such buffer stock volume shall be determined by the Task Force based on the daily consumption rate of Cagayan de Oro based on applicable data determined by the DA and/or City Agriculture Office of Cagayan de Oro *(I don't know where to place this)*

NOW, THEREFORE, BE IT ORDAINED by the Sangguniang Panlungsod of Cagayan de Oro City, in session assembled, that: